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For the first time, captive-bred Great Indian Bustard will set foot in the wild

Nikhil Ghanekar
New Delhi, October 2

CONSERVATION OF the critically endangered Great Indian Bustard (GIB) birds, which number about 140 in the wild, will enter a critical phase this weekend with at least two captive-bred GIB chicks slated for a pilot wild release in enclosures within the Desert National Park (DNP) in Jaisalmer, *The Indian Express* has learnt.

which is under implementation since 2013 for the long-term recovery of the flagship species of the Thar landscape.

According to those aware of developments, Union Environment Minister, Bhopender Yadav, and Rajasthan Chief Minister, Bhajan Lal Sharma, are likely to preside over the pilot release event, which is expected to be held on October 4. Already, a few chicks

for the rewilding process.

"Two male chicks, aged four to six months old, are likely to be released in existing enclosures within the Desert National Park. These birds will be radio-tagged to monitor their movement and behaviour," said K C A Arun Prasad, Chief Wildlife Warden, Rajasthan Forest Department.

The GIB, a keystone species of arid and semi-arid open natural ecosystems, has been on the brink of extinction with its wild population hovering in



Newly hatched GIB chicks at the National Bustard Conservation Breeding Centre in Jaisalmer. PROJECT GIB ANNUAL REPORT 2024-25

E. EXPLAINED

Insect feed

The timing of the pilot release in Desert National Park (DNP) in Jaisalmer has been scheduled with the end of monsoon as the insect load in the grasslands will aid feeding of the Great Indian Bustard chicks. The GIB has a slow reproduction rate, laying eggs once every one-two years.

the range of 120-150 for many years. According to latest population estimates, the largest population, 130 (+/-20) is in Rajasthan with about 5-6 individuals across Gujarat, Maharashtra and Karnataka.

They have faced threats ranging from habitat loss, poaching, and depredation of individuals and GIB eggs by predators. More recently, mortality due to collisions with power lines erected to evacuate power from renewable energy projects have posed a threat.

The Supreme Court has or-

dered that renewable energy project power lines situated in areas outside the DNP have to be buried underground by December 2027.

The GIB chicks to be released in the wild were bred and raised in captivity under the 'conservation breeding' phase of Project GIB. To insure against their low wild population, at least 98 Bustards have been bred in captivity at the Wildlife Institute of India's (WII) conservation breeding centres at Sam and Ramdevra, in Jaisalmer.

»CONTINUED ON PAGE 2

Bustard

Beginning 2019, wild collected eggs were artificially incubated, hatched and raised by a team of WII scientists. Of the 98 birds, 40 have been raised through artificial incubation, while 57 were born to birds who mated in captivity at these centres.

Earlier this year, the “jumpstart” method was also used in which infertile eggs laid by wild female GIBs in Kutch, Gujarat, were replaced with viable eggs from Rajasthan’s captive-breeding centre by WII scientists in collaboration with the Rajasthan and Gujarat forest department. The chick that was born

in the second such attempt has survived the critical first three months in the wild, as per a press release issued by the Environment Ministry earlier this month.

The timing of the pilot release has been scheduled with the end of monsoon as the insect load in the grasslands of DNP will aid feeding of the GIB chicks. The GIB has a slow reproduction rate, laying eggs once every one-two years.

The enclosures within DNP are spread over 15-20 sq km. According to the latest GIB population estimation survey, at least 40 individual birds are distributed in the northern part of DNP – around the release sites. Those working on Project GIB said that the chicks that will be re-

leased will have to survive the risks of predation, with the presence of birds of prey, desert foxes in these habitats. The survival of a captive-bred bustard released in the wild is low, between 10-30 % a year, according to those associated with the project.

"It is the beginning of a long challenge," said Sutirtha Dutta, Wildlife Institute of India (WII) scientist and project investigator.

The latest population survey, carried out in 2024-25 and made public in July this year, had noted that the GIB were largely concentrated on flat grasslands, devoid of human settlements and renewable energy infrastructure, in and around the DNP and Pokhran Range in Jaisalmer district.

Centre to resume appraising post facto green clearance cases after top court ruling

Nikhil Ghanekar
New Delhi, October 2

THE UNION Environment Ministry has directed its central and state-level expert bodies to resume processing ‘post facto’ environmental clearance (EC) proposals, two months after the Supreme Court permitted it to take such pending, rejected or returned proposals to their logical conclusion in accordance with law.

Post-facto environmental clearances refer to dispensation provided by the Centre for those projects which had begun work, expanded, or modernised them without seeking prior approval as mandated by law.

The Ministry of Environment, Forest and Climate Change on September 30 directed all expert appraisal committees, state-level environmental impact assessment authorities and pollution control boards to process such proposals with the caveat that no fresh proposals should be accepted.

Projects pending at various stages of environmental clearance or those which were rejected, returned or de-listed due to the Supreme Court’s interim orders will be taken to a logical conclusion.

These proposals were submitted under a post facto clearance dispensation that was introduced by the Centre, initially in 2017, and later continued through a 2021 Office Memorandum (OM).

While several developers and project proponents had already benefited due to this mechanism, many proposals were not processed due to a long-pending legal challenge against the retrospective clearance regime through a clutch of petitions, including by Mumbai-based non-profit Vanashakti.

The Centre’s latest directive implements the Supreme Court’s July 29 judgment in the ‘Vanashakti vs Union of India’ case. On July 29, a bench of Chief Justice of India Surya Kant, Joymala Bagchi and Vipul M Pancholi quashed the 2021 Office Memorandum and ruled that projects already

Projects pending at various stages of environmental clearance or those which were rejected, returned or de-listed due to the Supreme Court’s interim orders will be taken to a logical conclusion.

granted ‘post facto’ approvals will remain valid. It also ordered that applications pending under the ‘post facto clearance’ mechanism shall be taken to their logical conclusion in accordance with law.

The Supreme Court had also ruled in July that the prior clearance regime is mandatory, unless amended, but upheld the 2017 notification as it was a narrowly tailored, time-bound legislation.

The legal challenge against retrospective clearances has seen many turns. The 2021 OM was initially stayed in 2021. Later, in May 2025, the Supreme Court quashed the entire mechanism, terming it illegal. However, deciding on a review petition by the Confederation of Real Estate Developers’ Associations of India (CREDAI), the Supreme Court recalled its May 2025 order and heard the matter afresh before giving its final ruling in July 2026.

The post facto regime was first brought in 2017 as an amnesty and a one-time six-month window to deal with ‘violations’ cases where work had begun on projects, or they were expanded and modernised without obtaining prior environmental clearance under the Environment Impact Assessment (EIA) notification, 2006. This was done ostensibly to mitigate the damage that would have been caused by projects that had undergone environmental impact scrutiny.

In 2021, however, the ministry also brought out an Office Memorandum laying down a standard operating procedure to handle ‘violations’ cases.





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El Niño calls for wider tracking of climate stress

IN RECENT years, India has become reasonably proficient in forecasting atmospheric disturbances that cause cyclones. The India Meteorological Department (IMD) issues alerts for extreme weather events such as intense rainfall and heat waves. In the coming months, the country's scientific community will face a different climate-related challenge. India has entered a potentially difficult post-monsoon period. After a 12.6 per cent rainfall deficit during the southwest monsoon, the IMD expects extremely dry conditions over most of the country for the rest of the year. A strengthening El Niño can reduce water availability in rivers and wetlands and increase stress on farms, forests and oceans. These could have cascading effects on people's lives and livelihoods. However, two forests with similar rainfall deficits may respond differently because of differences in soil moisture, vegetation, groundwater or human pressure. Two wetlands may have different capacities to withstand a prolonged dry spell. Such differences cannot be explained by the intensity of warming and point to the importance of local ecological conditions. A Super El Niño may not cause an ecological shock by itself, but it can push an already stressed system past a threshold. Micro-monitoring can help discern ecological nuances and help direct scarce resources to imperilled ecosystems. It can also identify resilience.

Continuous and high-level satellite data of the Earth's atmosphere and surface has fundamentally transformed weather forecasting and disaster response. Such observations today need to be complemented with field-level observations. Uttarakhand's recent move towards real-time monitoring of glacial lakes is an important initiative in this respect. At the especially vulnerable Vasundhara Tal, sensors will link changes in water levels, snow depth and other features of the glacial lake with early-warning mechanisms. Similarly, tracking soil moisture, vegetation stress and animal movement is necessary to identify unusually dry patches in forests early. This is particularly imperative because warmer winters, erratic western disturbances, and declining snow cover are already altering the moisture cycle in the Himalaya, leaving forests vulnerable to fires before spring. Identifying thermal distress in coral reefs can, likewise, provide valuable insights into the health of marine ecosystems and help protect shorelines from waves and erosion.

Last month, nearly 200 ecologists in the country issued an appeal for an emergency ecosystem-wide monitoring network. The appeal is salient because the current El Niño is likely to be too large for any one institution to track. The country has proven scientific capacity to understand weather, but ecological monitoring remains divided among research institutions, government departments, universities, and citizen groups. A coordination framework among them can enable a robust response not just to the immediate challenge, but to broader climate vagaries.

On appointment of CEC and ECs, a lesson from UN



MANJEEV
SINGH PURI

The difficult task is obtaining consensus and putting up with a few rounds of a lack of it — this is not dissimilar to what is currently happening at the UNSC with the selection of the next UNSG

TWO DEVELOPMENTS, unrelated but interconnected, in recent weeks have brought to the fore the critical imperative of ensuring trust in the machinery of India's electoral democracy. The first, and by far the more important, was *The Indian Express's* reportage on the actions of the Chief Election Commissioner (CEC) and some senior Election Commission officials that appear to undermine the right to vote. Apparently, these actions even fell foul of other Election Commissioners (ECs).

The other was a split verdict of a Supreme Court division bench, wherein one judge underscored the Court's March 2023 judgment and emphasised that the executive could not have exclusive powers in the appointment of the CEC and the ECs.

Article 324 of the Constitution vests superintendence of national and state elections in the Election Commission but leaves it to Parliament to decide how the CEC and ECs are appointed. With no legislation for nearly 75 years, the executive filled this constitutional vacuum and appointed the CEC and ECs until a Supreme Court judgment in March 2023 ruled against exclusive executive control over these appointments. Accordingly, until a law was passed, the Supreme Court created a selection committee to appoint the CEC and ECs. It was to consist of the Prime Minister, the Leader of the Opposition in the Lok Sabha, and the Chief Justice of India (CJI).

At the end of 2023, Parliament enacted a law on the subject that left out the Chief Justice but included a cabinet minister in the three-member selection committee. The cabinet secretary was to prepare a shortlist of candidates for the committee, whose decisions would be by majority vote. For many, including the learned judge, this did not square with the March 2023 judgment, given that the cabinet minister was hardly likely to differ from the Prime Minister, making the selection committee clearly loaded in the government's favour.

Institutional arrangements to ensure that the people at the helm of the election process, the CEC and the ECs, are as free as possible from bias and act with fairness are key imperatives for India. For this, having the government and the Opposition on the same page in the CEC and EC

selection process would appear to be a critical ingredient — not just in the constitution of a bipartisan selection body, but in ensuring that its outcomes reflect bipartisan agreement.

A leaf could be taken from the United Nations Security Council's procedure to select the UN Secretary-General — none of the five Permanent Members with a veto must dissent from the choice. This can mean that the candidate who makes it is not always the one with the best technical qualifications, but someone not distrusted by any of the P-5.

Complete trust is, of course, the ideal, but given its somewhat utopian likelihood, removing distrust is, perhaps, the best option.

The Constitution has entrusted the Election Commission with the "superintendence" of elections. Over the years, this has meant certain overriding administrative powers for the Election Commission. Such responsibilities call for acumen and experience from those helming the agency. Therefore, in the past, those holding top positions in the bureaucracy have been selected. This also sits well with the principle of seniority, a not unimportant consideration in our societal norms.

The imperative to accord respect to seniority would also suggest constituting the committee in a way that it is headed by the Chief Justice of India and includes a Union cabinet minister and the Leader of the Opposition. A situation in which the Prime Minister's views are not upheld by the committee is best avoided, while the Chief Justice of India outranks Union cabinet ministers in the warrant of precedence.

The difficult task is obtaining consensus and putting up with a few rounds of a lack of it — this is not dissimilar to what is currently happening at the UN Security Council with the selection of the next Secretary-General. For this, the role of the CJI becomes critical, but so does that of the cabinet secretary in suggesting names of not only those who have served in top bureaucratic positions, but also those who are not perceived to have political leanings and are not "close" to the political leadership. This is not an easy task but, perhaps, a critical one in a free and fair electoral democracy.

The writer is former ambassador of India to the EU and Nepal

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— *The Guardian*

The Ideas Page

SATURDAY, OCTOBER 3, 2026



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Needed: A Super El Niño Abhiyan



ROHINI NILEKANI

VERY RARELY, it is okay to be alarmist. This is one of those times. Even usually cautious scientists seem to agree. For the first time, the World Meteorological Organisation, the National Oceanic and Atmospheric Administration (NOAA), and other reputed global scientific research institutions have expressed a high degree of confidence in their 2026 El Niño forecast. They offer a 97 per cent probability that it will continue into spring 2027. The NOAA puts 80 per cent-plus odds on it becoming a strong to very strong event, with sea surface temperature anomalies exceeding 2°C, a threshold rarely crossed in the key Pacific monitoring region. The UN warns that this “supersized” El Niño has the potential to deliver massive blows to economies globally. Based on 1,000-year coral-core climate records, media report this could be the worst event in a millennium.

Why should we in India care about what’s happening in the Pacific Ocean? The Pacific El Niño and our Indian monsoon are inextricably tied together. The heat in the ocean drives moisture-laden winds. When the Pacific becomes unusually warm, it will disrupt the very wind systems that pull rains towards India. Often, alongside a strong El Niño, we have experienced some of our worst droughts, such as in 1972, 2002 and 2009. This “Super El Niño” is coming on top of a long-term trend of global warming, which we have seen can exacerbate extreme weather. In India, disasters are no longer exceptional events. In 2023, for example, 86 per cent of days witnessed an extreme weather event, with more than 2.2 million hectares of cropland damaged. About 85 per cent of districts are exposed to floods, droughts, or cyclones.

This year’s El Niño might be like a new blow to an open wound. We should plan for the worst. Yet, we don’t know how it will affect terrestrial systems inside the country — our grasslands, forests, or riverine systems — or impact the phenology, the growth and fruiting of plants. We do not understand how it will affect agriculturists and pastoralists, nor can we predict the exact impact on our marine systems. Pacific Ocean temperatures have already risen 2.6°C above the threshold typically used to define El Niño (0.5°C), with projections suggesting anomalies could reach up to 4°C. At such temperatures, we can expect several coral reefs to bleach and die out. Even without a Super El Niño, Nature Conservation Foundation researchers recorded a 50 per cent decline in the coral reefs around Lakshadweep between 1998 and 2025. Thanks to conservation efforts, some had begun to bounce back. With El Niño becoming more frequent and intense, the next setback might be harder to overcome. INCOIS, India’s ocean monitoring agency, predicts severe heat stress on both the Arabian Sea and the Bay of Bengal, peaking around March 2027. The livelihoods of millions of fisherpeople will be directly hit, with staples like sardine and mackerel likely to see reduced catch.

We are already feeling the pain. The southwest monsoon has closed well below its long-period average, with some regions recording September shortfalls of half the normal, hurting rice, pulses, cotton and maize. Reservoirs are thin heading into the rabi season. The main climatic punch is expected only from November onward. To avert some of the worst, we need to be better prepared. For starters, we will have to understand more. On September 16, 188 conservationists and researchers issued a “call to ecologists” to do so. Let’s not react after the fact this time, they plead. Let’s be proactive and prepare to gather rigorous data in real time. Let’s break our silos and make a multi-sectoral effort.

How can government agencies come together with scientists across public and private institutions to understand specific vulnerabilities? How can we monitor coral reef bleaching, large rain-forest tree mortality, fire risks, urban heat island effects, and shifts in phenology and also in animal behaviour? We need on-site measurement that matters to people, not just data from large-scale remote sensing.

Sadly, despite decades of anecdotal experience, we still do not have systematic data on how El Niño events actually play out across our natural ecosystems, and especially on communities and the livelihoods that are dependent on them. In Lakshadweep, the 1998 El Niño destroyed 80 to 90 per cent of live coral on most reefs studied. We know this only because a handful of researchers, like marine biologist Rohan Arthur, happened to be in the water with measuring tapes that year. Everything we later learned — that reefs with healthy fish populations recovered better, that local currents mattered more than assumed — exists only because someone was watching at the right time, in the right place.

This time, we have an opportunity. It is an ecological and social crisis to which the political regime, too, will have to respond. The government already understands the urgency. It must now facilitate access and funding support to develop the scientific evidence that will help build resilience. Philanthropic capital needs to understand this research effort as a moral imperative. Shall we start a Super El Niño Abhiyan, where scientific evidence, administrative readiness, and societal empathy come together to create an invincible shield of actionable knowledge for our people?

Nilekani is chairperson, Rohini Nilekani Philanthropies and the author of Samaaj, Sarkaar, Bazaar — A Citizen First Approach

EXPRESS special

Two kilometres off TN coast, a lost world emerges from the sea

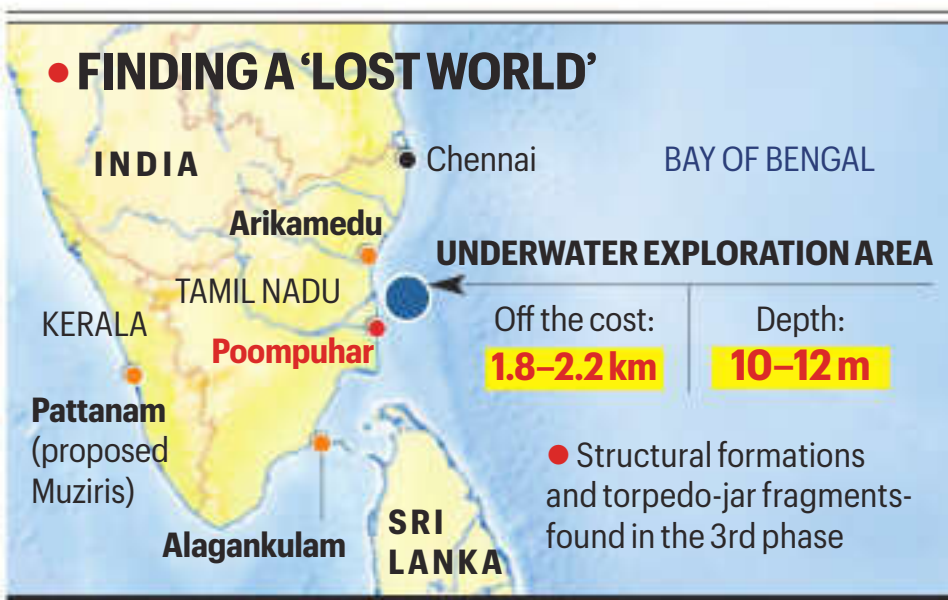
Underwater explorations off Poompuhar uncover Chola period pottery and structures

Arun Janardhanan
Chennai, October 2

ABOUT 2 kilometres from the present-day Tamil Nadu coast, archaeologists searching the seabed off Poompuhar have recovered something that travelled a much greater distance. Found in 10-12 metres of water, the fragments of pottery were believed to have originated in West Asia, including pieces of a torpedo jar, a distinctive transport vessel associated with long-distance maritime trade in the Indian Ocean.

Archaeologists recovered the fragments during the third phase of underwater exploration, about 1.8 to 2.2 km from the present shoreline. For archaeologists trying to reconstruct ancient Kaveripoompattinam — the celebrated Chola port known today as Poompuhar, parts of which now lie beneath the Bay of Bengal — the find provides a new material clue to a world that Tamil literature described nearly two millennia ago.

“We are looking for more samples, and studying their typology and morphology,” K Rajan, Academic Advisor to the Tamil Nadu State Department of Archaeology, told *The Indian Express*. “The unearthing of these ceramics shows that the inhabitants of the port city in-



dulged in transoceanic trade.”

The third phase, during which the latest findings were made, is part of a larger underwater archaeology project by the Tamil Nadu government to map the extent of the ancient port and its installations, locate possible shipwrecks, and study changes in sea levels and the course of the Cauvery. The exploration, being carried out by the State Department of Archaeology in collaboration with the Indian Maritime University, covers waters roughly two kilometres off the present coast and forms part of the Tamil Nadu government’s larger archaeological push to investigate the antiquity and maritime networks of ancient Tamil society.

The department says only about 10 per cent of the overall underwater exploration has been completed so far.

Images of the find have been sent to international specialists, including experts in Italy, for comparison and identification. The latest finds broadly fit the Early Historic and immediately succeeding centuries, but archaeologists have not yet assigned the Poompuhar torpedo-jar fragments a firm date.

Torpedo jars circulated for several centuries, making their archaeological context crucial for dating them.

While a potsherd can establish the movement of an object, establishing where it was manufactured, when it arrived and what kind of commercial relationship brought it to Poompuhar, known simply as Puhar, requires further study. But Poompuhar does not stand alone.

At Pattanam in Kerala, widely proposed as the site of the ancient port of Muziris, though that identification remains debated, excavations have produced Roman amphorae and West Asian ceramics — including torpedo jars and turquoise-glazed pottery wares spanning the Sasanian (224-651 CE) into the Early Islamic period, with some excavated pieces identified as Sasanian. Alagankulam, near the mouth of the Vaigai in Ramanathapuram district, has yielded hundreds of Mediterranean-related potsherds, including amphora fragments, while red ware bearing Tamil-Brahmi letters found there has been assigned to the first century BCE.

The older Poompuhar wharf,

meanwhile, produced a radiocarbon determination of 316 ± 103 BCE, while Arikamedu, near Puducherry, became one of the foundational archaeological sites for understanding India’s early maritime contacts with the Mediterranean world.

The objects were significant because they gave physical form to a maritime geography already visible in ancient texts. “Yavanas came here” is what is mentioned in the literature already. ‘Pattinappalai’, ‘Manimekalai’, and ‘Silappathikaram’ all mention that,” Rajan said. Yavana was a term that originally derived from “Ionian” and referred to Greeks, but in Indian usage, its meaning broadened over time to encompass people arriving from the Hellenistic and Roman Mediterranean world and other western foreigners.

Tamil literature describes Puhar as something recognisably cosmopolitan. Pattinappalai, a Sangam poem centred on Kaveripoompattinam, describes people from different lands and languages living in the city. Later Tamil traditions describe a settlement of Yavanas near the waterfront and a commercial landscape of merchants, artisans, warehouses and imported goods. ‘Silappathikaram’ and the Buddhist epic ‘Manimekalai’ preserve further descriptions of Puhar as an extraordinary urban and maritime centre.

What archaeology is now trying to determine is where that city went. The latest exploration is extending that inhabited landscape offshore. Archaeologists have found foreign and local pottery, fragments of ring wells 60 to 65 centimetres in diameter and structural formations embedded in the seabed.

Decades without any big cats, Buxa Reserve gets a tigress — from Bihar

Atri Mitra
Kolkata, October 2

IN A significant milestone for tiger conservation in India, a tigress from Bihar’s Valmiki Tiger Reserve was released into West Bengal’s Buxa Tiger Reserve on Friday, marking the start of a phased programme to reintroduce tigers to the area after decades without a stable resident population.

The three-year-old tigress, T138, was released in the presence of Chief Minister Suwendu Adhikari, who said that three more tigers would be introduced into Buxa over next two months.

“Earlier, it was a tiger reserve only in name. There were no

tigers there,” he said, in a jibe at the previous Trinamool Congress government. Adhikari announced plans to develop a world-class tourism centre on 2,000 acres near the Jayanti river and said the Union government had sought an inspection of the proposed site.

In a post on X, Bhupender Yadav, Union Minister of Environment, Forest and Climate Change, said reintroduction fulfilled a major conservation commitment. “Inspired by PM Shri @narendramodiji’s push for landscape conservation and species protection, today we have fulfilled the significant promise to reintroduce tiger in Buxa. T138 has been brought



Tigress T138 at Buxa Tiger Reserve on Friday.

from Valmiki Tiger Reserve from Bihar to Buxa. I thank Bihar Chief Minister Shri @samrat4bjp and West Bengal Chief Minister Shri @SuwenduWB for their support in this successful reintroduction...,” the post read.

According to a statement by Ministry of Environment, Forest

and Climate Change, the tigress’s release in Buxa marks the first phase of a planned, phased and adaptive recovery programme. “It marks a fitting beginning of India’s Wildlife Week 2026, with initiation of a phased Tiger Reintroduction Programme aimed at restoring a vi-

able and self-sustaining tiger population in this historically important tiger landscape,” it added. Terming Buxa’s recovery “a sustained, science-based effort”, the ministry said the state’s Tiger Augmentation and Recovery Project, initiated with support from the National Tiger Conservation Authority and the Wildlife Institute of India, has been implemented collaboratively since 2018.

To support recovery efforts, authorities have released more than 800 chital into the reserve and restored or converted about 380 hectares of grassland since 2018. Camera traps recorded tiger movement in the landscape in 2021, 2023 and 2026, in-

cluding one tiger matched to Manas Tiger Reserve in Assam.

“The recovery of tigers in Buxa is also significant at the landscape level. Its ecological linkages with North Bengal, Assam and Bhutan provide opportunities for movement and dispersal of wildlife across a larger connected landscape. Strengthening Buxa therefore has implications ... for the conservation of forests... and wider biodiversity,” the statement said. “The programme is not merely about bringing tigers back to Buxa. Its objective is to create conditions in which a tiger population can establish, breed and ultimately become viable and self-sustaining,” it added.

OIL IMPORTS FROM RUSSIA DECLINED FOR 2nd STRAIGHT MONTH

Ship-to-ship transfers boost India’s import of oil from West Asia

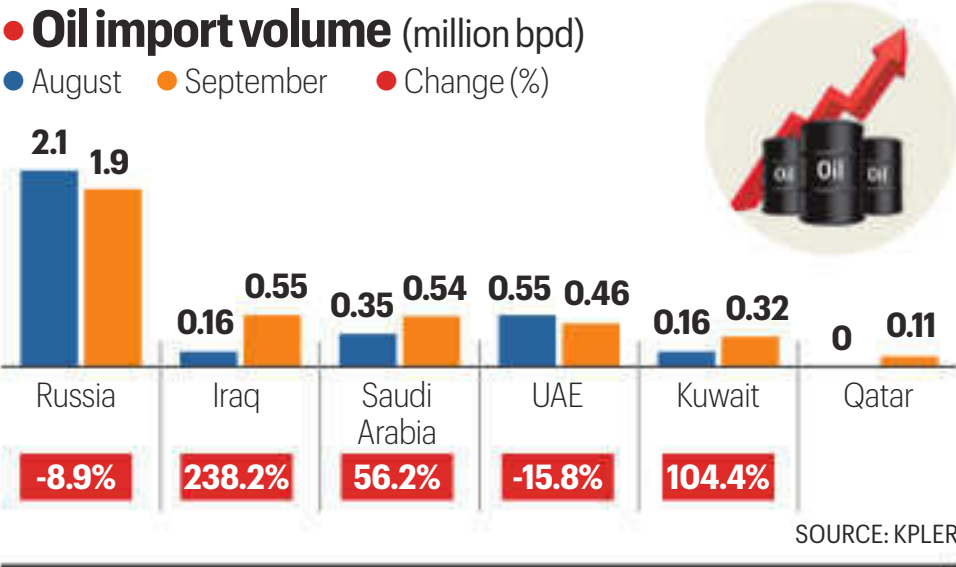
Sukalp Sharma
New Delhi, October 2

INDIA’S OIL imports from West Asia saw a notable jump in September with Gulf suppliers effectively using ship-to-ship (STS) cargo transfers to move their crude through the fraught waters of the Strait of Hormuz, as per provisional tanker data. Oil imports from India’s largest supplier Russia, however, declined for the second straight month due to stronger competition from Chinese refiners and tighter Russian crude availability amid Ukrainian attacks on Russia’s oil and gas infrastructure, according to industry insiders and analysts.

Amid the ongoing conflict in the region, the much improved availability of West Asian oil comes as a relief for India, given the pressure being exerted by the US on top buyers of Russian oil. Although India has stated that its priority is to meet the energy needs of its 1.4 billion citizens through diversified sourcing, the recently enacted Russia and Iran sanctions law in the US has added a layer of uncertainty around the future of oil imports from Russia. The law — Lindsey O Graham Sanctioning Russia and Iran Act — allows US President Donald Trump to impose tariffs of up to 100% on the biggest buyers of Russian oil, a list topped by China and India.

While New Delhi continues to engage with Washington on the new law, experts believe that it would be prudent for Indian refiners to try and progressively reduce their reliance on Russian crude and step up further diversification of oil import sources.

“Going forward, improved Middle Eastern barrels’ availability could see Indian refiners lean more towards them, particularly amid the geopolitical uncertainty surrounding the



Graham Act,” said Nikhil Dubey, lead analyst - refining at commodity market analytics firm Kpler.

India’s Russian oil imports declined almost 9% in September to 1.9 million barrels per day (bpd) from 2.1 million bpd in August, according to vessel tracking data from Kpler.

Russian oil import volumes had touched a historic high of 2.8 million bpd in July, and September volumes were at a five-month low, although they still accounted for over 35% of India’s total oil imports during the month.

The sequential decline in oil imports from Russia was more than made up for by a spurt in imports from suppliers like Iraq, Saudi Arabia, Kuwait, and Qatar. Oil imports from Iraq jumped 238.2% sequentially in September to over 551,000 bpd, while those from Saudi Arabia were up 56.2% at almost 543,000 bpd. Imports of Kuwaiti oil surged 104.4% over August to about 317,000 tonnes. Oil imports from Qatar, which were nil in August, stood at nearly 110,000 bpd.

Among West Asian suppliers, only the UAE saw a decline in volumes — down 15.8% month-on-month at around 460,000 bpd. In February, before the West Asia war started, India’s oil imports from these five West Asian suppliers stood

at around 3 million bpd. Combined September volumes were 33% lower at 2 million bpd. Their cumulative share in India’s oil imports was 36.7% in September, up from 26% in August, but still substantially lower than February’s 56.3%.

Iraq, Kuwait, and Qatar are the most dependent on the Strait of Hormuz for exporting their oil. Saudi Arabia and the UAE have pipeline systems that bypass the chokepoint, although a bulk of their oil also traditionally transited the strait. The jump in export volumes from inside the Strait of Hormuz is largely due to STS activity, according to trade sources. Unlike regular operations, in which oil is loaded onto tankers that sail directly to the destination port, STS transfers involve a shuttle tanker that carries the oil for some distance, after which the cargo is transferred to another ship. In STS operations in the Strait of Hormuz, the supplier usually takes on the responsibility — and the risk — of sending the oil through the strait, after which a tanker waiting in safer waters outside the strait takes the oil and sails to the destination port.

This has effectively transferred the risk largely to the suppliers from the buyers.

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DEVIATIONS CAN HAVE IMPLICATIONS FOR PLANNING ACROSS POWER SYSTEM

Power demand overshoots govt’s projection by 3.3% in April-August

Pratyush Deep
New Delhi, October 2

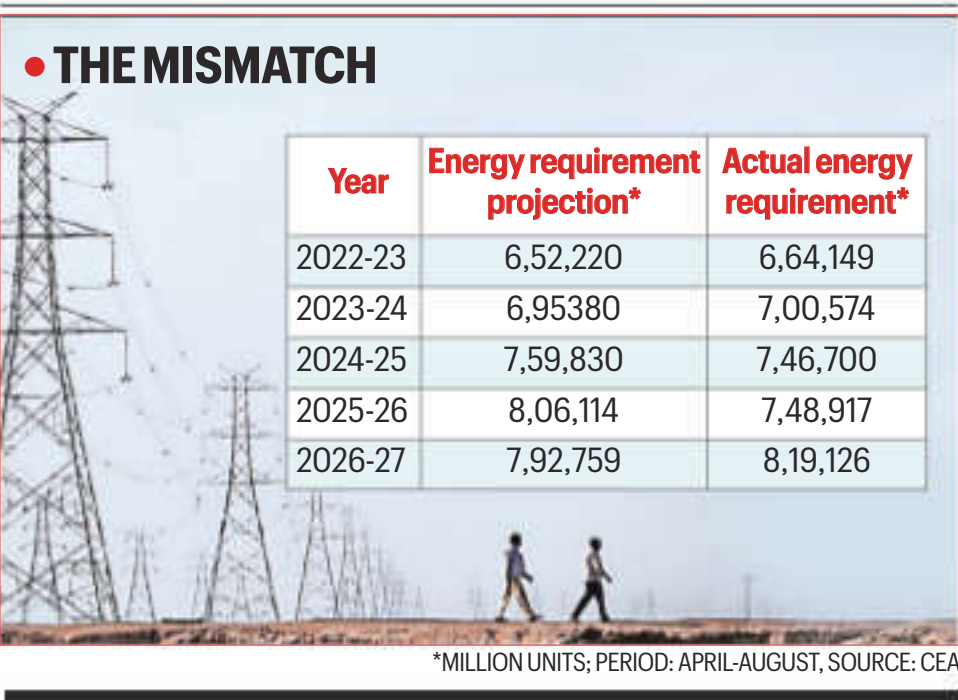
IN AN unusual trend, India’s actual power requirement in the first five months of the current financial year has consistently exceeded the government’s projections, as deficient rains and persistently high temperatures drove electricity demand higher than anticipated.

Actual power requirement usually remains below the short-term projections made by the Central Electricity Authority (CEA). However, between April and August, the country’s actual energy requirement was 3.3% higher than the CEA’s projections, an analysis of government data showed.

Such a deviation was recorded only in 2022 and 2023, although at a much lower level. These were also years when the economy and electricity demand were recovering from the disruption caused by the Covid-19 pandemic.

In April-August 2023, actual energy requirement was 0.75% higher than the CEA’s projection, while the deviation was 1.8% during the corresponding period in 2022. The divergence assumes significance as generation companies and power system operators use the CEA’s short-term projections to plan fuel requirements, including coal stocking, as well as other operational requirements.

A significant deviation from these projections can therefore have implications for planning



across the power system.

The unusual demand trend also raised concerns over power availability, with the government moving to take additional measures to maximise generation from available capacity.

Among these measures, the power ministry has directed around 112 captive coal-based power plants to operate at maximum capacity from October 1 to December 31.

“Trend reverses in September”

Notably, the CEA prepares a short-term power supply plan, known as the Load Generation Balance Report (LGBR) — an annual report that assesses the country’s anticipated power supply position, energy availability, and peak electricity demand for the upcoming fiscal year. The projections in the LGBR are used to inform various stakeholders, including the Railways, coal

companies and other agencies involved in fuel supply and power system operations, allowing them to plan their requirements and resources accordingly. According to power system operators, the trend started to reverse in September, with rainfall in parts of northern and eastern India bringing some moderation in demand. “Projection for September was also high, around 161 billion units, and rainfall in eastern and northern parts have reduced some load. So, some reversal of the trend in September has been observed,” a senior official told *The Indian Express*.

The gap of 3.3% is expected to narrow in the coming months and approach the projected levels over the next two to three months, the official said. “Normally there is always an excess in the plan. But this time it may be very close to the plan. Since the deviation was there for a longer period of five months, the pace

of reduction is likely to be slower,” the official added.

Stress on coal-based sources

The excess energy requirement has pushed up generation from coal-based power plants which are already operating beyond planned levels.

Coal-based sources generated nearly 10% higher electricity between April and August compared to the same period last year. Between April and August, coal-based sources generated 579,869.38 million units (MU) against 527,542.87 MU in the corresponding period last year. Generation from coal-based sources was also the highest recorded for the April-August period in the past three years. In contrast, hydropower generation fell by over 11% to 75,304.58 MU during April-August period this year, from 84,767.77 MU in the corresponding period last year.

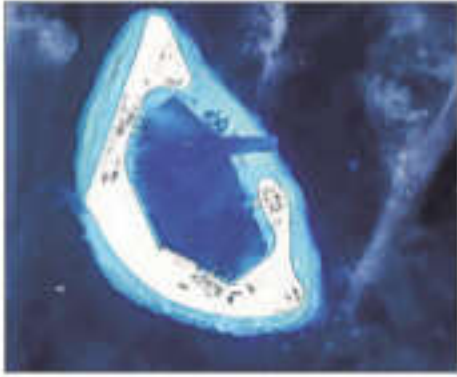
The decline in hydropower generation has tightened the power supply balance, as hydroelectricity plays a crucial role in meeting evening peak demand. However, rainfall deficit has altered the equation. Earlier, the Ministry of Power informed Parliament that reservoir levels at hydroelectric power plants across the country have fallen to their lowest for the April 1-July 30 period since 2023, as erratic weather conditions linked to the effects of El Niño reduced water availability for power generation.

FULL REPORT ON
WWW.INDIANEXPRESS.COM

Reuters
Hong Kong, October 2

CHINESE CONSTRUCTION of a runway on Antelope Reef in the Paracels archipelago is well underway with analysts estimating it could be completed by mid-2027, strengthening Beijing's military control over the disputed South China Sea.

Satellite images show grading work, piles of gravel and concrete, and cranes in operation to build a full-scale runway that military attaches and security analysts say could be one of China's most important



A satellite view of Antelope Reef in the South China Sea. REUTERS

offshore bases in the region.

The images, taken on September 25 by commercial satellite imagery provider Vantor, also show a fully loaded gravel barge

heading to a newly built wharf.

A completed base at Antelope would be China's most significant military expansion in South China Sea, extending the reach of Chinese naval ships and military aircraft in a waterway that is an increasingly militarised arena of competition between Beijing and the US and its allies over Taiwan.

"If Fiery Cross is the guide, I'd expect the runway paved in the first half of 2027 and a first landing by mid-2027, possibly earlier," said Ben Lewis, founder of the open-source data platform PLATracker.

Taiwan's first F-16V fighter jets arrive to bolster air defence against China

Taitung: The first two of a batch of 66 new F-16V Block70 fighter jets ordered in 2019 arrived in Taiwan on Friday, helping to strengthen an air force that has to scramble almost daily to shadow China's military.

Taiwan faces a rising military threat from Beijing, which claims the democratically governed island as its own territory. Taipei has complained of

repeated delays to weapons ordered from US. "This is an important development in strengthening Taiwan's air defence capabilities," President Lai Ching-te wrote on Facebook, thanking US for support.

Defence Minister Wellington Koo said there would be other new F-16Vs arriving soon, though he did not give details. REUTERS

• LEGAL

India's twin mechanism for governing drug prices

Not all medicines have price caps in India. This framework has now been challenged in the top court, which has compared high markups to 'dacoity'



AMAAL SHEIKH

THE SUPREME Court last month described the markup between the price at which medicines reach retailers and the price printed on the pack as “carnage”, calling the difference akin to “broad daylight dacoity with patients”.

Hearing petitions on medicine pricing, a bench of Justices Vikram Nath and Sandeep Mehta asked the Centre why the 16% retailer margin under the Drugs (Prices Control) Order (DPCO), 2013, should not apply to all medicines.

The remarks came in the context of an essential cancer drug that is being supplied to retailers for Rs 2,700 but carries an MRP (maximum retail price) of nearly Rs 27,000. Questioning the difference, the bench said, “The MRP is 10 times the rate at which it is provided to the retailers. If this is not extortion, then what is it... That’s absolute rampage, carnage, broad daylight dacoity... It is very surprising that the authorities who are supposed to take a decision on this are absolutely silent. We don’t need to spell out the reason for that,” the bench said.

The petitions seek regulation of drug prices, generic prescriptions and medical devices. They also seek stricter enforcement of price controls under the DPCO to prevent disproportionate profit margins across the drug supply chain. But how are medicine prices fixed and why do some medicines remain outside price control?

The legal framework for pricing medicines

The Essential Commodities Act of 1955 gives the Union government power over essential goods, including medicines.

Section 3(1) of the Act allows it to regulate production, supply and distribution “for maintaining or increasing supplies of any essential commodity or for securing their equitable distribution and availability

DIFFERENT PRICING REGULATIONS

Scheduled drugs	Non-scheduled drugs
• NPPA calculates the ceiling price using the average price to retailer (PTR) of qualifying brands, plus a 16% retailer margin. • For example, if three brands have PTRs of Rs 8, Rs 10 and Rs 12, the average PTR is Rs 10 and the ceiling price is Rs 11.60. • The MRP cannot exceed the ceiling price, apart from applicable taxes.	• Companies can set the initial MRP themselves. • The MRP cannot be increased by more than 10% in 12 months.

at fair price”. Section 3(2)(c) allows for issuing orders controlling commodity prices.

The DPCO is such an order. It is the primary framework governing medicine prices in India. It authorises the National Pharmaceutical Pricing Authority (NPPA), set up in 1997 under the Department of Pharmaceuticals, to fix and revise ceiling prices of scheduled formulations, set retail prices for new drugs, monitor overcharging and implement the DPCO.

For medicines covered under the DPCO, the NPPA sets a maximum price that companies cannot exceed. It also monitors whether companies are following price control rules and can order recovery of money if patients have been overcharged. In some situations, it can also cap the prices of medicines or medical devices otherwise outside regular price control.

Scheduled and non-scheduled medicines

The DPCO divides medicines into two broad categories — scheduled and non-scheduled formulations. A formulation refers to a medicine in a particular strength and dosage form.

Scheduled formulations are medicines included in Schedule I of the DPCO. Sched-

Price control framework

The Essential Commodities Act gives the Centre the power to issue price control orders for essential items, including medicines.

The Drugs (Prices Control) Order, or DPCO, is one such order.

It authorises the National Pharmaceutical Pricing Authority to fix, revise and monitor pricing.

ule I is based on the National List of Essential Medicines, a list prepared by the Ministry of Health and Family Welfare, identifying medicines considered essential for meeting the country’s healthcare needs. Non-scheduled formulations are medicines that are not listed.

The current list contains nearly 390 drugs, accounting for only 20% of the total drug market turnover. Medicines under Schedule I are subject to government price controls.

How ceiling prices for medicines are calculated

A ceiling price is the highest price at which a scheduled formulation can be sold to a consumer before taxes, and the NPPA calculates it based on prices already being charged in the market.

The NPPA first looks at every version of the formulation that has the same active ingredient, which is aimed at producing a certain effect in the body. A brand is a version sold under a company’s trade name. A “generic version” contains the same active ingredient but is sold under the ingredient’s name, or under a company’s own name without the originator’s brand.

The NPPA then removes the brands or generic formulations that account for less than 1% of total domestic market sales from the calculation. Market share is measured by “moving annual turnover (MAT)”, which basically is the product’s popularity in its total sales over the last year. The data comes from market research firms, which record medicine sales by brand.

For each version, the NPPA considers the price to retailer (PTR), or what the manufacturer or distributor charges the chemist or hospital pharmacy. The NPPA takes the average of these PTRs and adds a 16% retailer’s margin. The result is the ceiling price.

For example, if three versions of a scheduled medicine with the same strength and dosage hold at least 1% of the market share, with PTRs of Rs 8, Rs 10, and Rs 12, the NPPA takes the average, which is 10, and adds a 16% permitted retailer margin, resulting in a ceiling price of Rs 11.60. The MRP printed on the pack cannot be higher than this amount, apart from local taxes or GST.

Ceiling prices are revised annually on

April 1. The revision follows the Wholesale Price Index (WPI), a measure of the average change in wholesale prices. Manufacturers can raise prices to the WPI change for the preceding calendar year without approval. If the WPI falls, they must reduce prices within 45 days.

Medicines outside price control

Medicines not on the National List of Essential Medicines are generally treated as non-scheduled formulations and do not have price ceilings. Under the DPCO, manufacturers are free to set the initial MRP of a non-scheduled medicine. The only restriction is that the MRP cannot be increased by more than 10% in 12 months.

It is this very framework that is now under challenge before the SC. Petitioners argue that since the DPCO does not regulate initial launch prices, manufacturers can set inflated launch prices from day one, rendering the price hike cap ineffective.

The PILs challenge the lack of control over the launch price, arguing that the power to regulate medicines flows from Article 21, the right to health guaranteed under the right to life.

One of the pleas also focuses on the pharmaceutical supply chain and markups by retailers and hospitals. It says retailers are extracting “ten to sixteen times higher profit” than the permissible 16% margin for scheduled drugs. It says an antibiotic named Tigebax 50mg, with an MRP of Rs 5,635, is sold at full MRP in a bigger or corporate hospital. However, it is being sold in the open market outside the hospital at just Rs 350.

It adds that hospital pharmacies play a significant role in determining medicine prices, claiming “retail price or MRP of medicines by companies are decided according to inputs of corporate hospitals”. It claims that 30-40% of a critically ill patient’s bill in a corporate hospital comprises pharmacy expenses.

The plea also raises concerns about branded medicines and prescribing practices. Referring to statements made in the Lok Sabha, it says that medicines sold under generic names, which are their composition names, are “50% to 90% cheaper than their branded counterparts.”